ALTAIR GLOBAL IP AG

L-21 / A1 / A2 · Edición de archivo: 2026-10-26 · Acuerdo de explotación comercial y documentación contractual

Partes: Altair Global IP AG (Zúrich; licenciante, en adelante AG) y Altair Andina S.A.S. (Bogotá; licenciataria, en adelante AA). Fecha de ejecución de L-21: 15 de diciembre de 2025; vigencia a partir del 1 de enero de 2026. Texto operativo compilado con las modificaciones firmadas A1 y A2. Prevalece cada versión según las condiciones de aplicación previstas en su propio texto.

Extracto L-21 — derechos, territorio y productos

2.1 Grant. AG grants AA a non-exclusive right within Colombia to use the ALTAIR family of marks, the K-Core and K-Crypt technical materials licensed by AG, authorised visual standards, and specified distribution and support know-how in connection with products included in Appendix P. No transfer of title in any patent, program or trademark is intended.

2.3 Appendix P. Commercial product references: AX410 (control node), AX420 (OEM programmable hub) and AX900 (locally finished industrial controller). Appendix P identifies products sold by AA under the agreement; it does not specify a single manufacturing process for every unit. The materials actually present at the factory, and any work to be completed in Colombia, are governed by the relevant build records and release approvals.

2.6 Exclusions. Separately invoiced installation, extended support and on-site maintenance are not within net product invoicing. Other articles supplied as components or replacement parts are not included by product name alone; local sales under the ALTAIR mark may nevertheless require prior marketing approval under §5.

Calculation and settlement

4.1. AA shall accrue an amount equal to 4.5% of net invoiced product revenue from Appendix P references, after documented returns, product discounts and credit notes. The percentage is a combined commercial consideration for the licensed rights and is not individually billed by type of intellectual-property right. Amounts in separately itemised installation or support lines are excluded from the turnover base.

4.3. Annual minimum payment for 2026: USD 30,000, creditable against the amounts otherwise payable under §4.1 for the same calendar year. Any balancing amount is determined at year close; the minimum is not billed in addition to quarterly amounts already accrued.

4.5. Quarterly statements are issued after close and payable on 30 April, 31 July, 31 October and 31 January, respectively. Disputed statements shall be reconciled in writing; a dispute shall not by itself change the manufacturing permissions held by any third-party manufacturer.

4.7 — original allocation of tax. Unless an effective amendment states otherwise, any withholding assessed on royalties is deducted from the contractual gross amount; AA shall furnish evidence of the remittance to the tax authority.

Manufacturers and commercial permissions

5.2. AG shall maintain a factory authorisation register for goods bearing registered marks at the point of manufacture and for designated protected modules. Factory authorisation is not a warranty of payment or a credit approval. The seller remains responsible for commercial acceptance, freight arrangements and the invoiced price under the individual supply agreement.

5.4. If a royalty is more than 30 calendar days overdue, AG may issue a written suspension notice to designated manufacturers for specified article families. Suspension is not automatic. A notice shall state its effective time and its treatment of orders already accepted by the manufacturer. A manufacturer shall apply the notice in accordance with its own manufacturing authorisation.

5.6. AG may require tests, conformity records, traceability and brand-quality corrective action independently of the financial provisions of §4.

Amendment A1 — executed 2026-05-24

For the AX410 factory-finished article family only, AG authorised a revised system of supplier settlement with Altair Trading B.V. Orders shipped from 2026-07-01 may carry an embedded price component of USD 6 per unit under the supplier price schedule. Once AA has paid for an identified unit and has sold it without an outstanding product return, AA may claim a USD 6 credit per such unit against its quarterly royalty account. The credit shall be shown on the AG quarterly statement and is not transferable to other product codes or to Pacific-manufactured goods.

Amendment A2 — executed 2026-06-27, effective 2026-07-01

For AX410 revenue invoiced to Colombian customers from 2026-07-01 onward, the royalty calculated under §4.1, after applicable A1 credits, is the net amount AG is contractually entitled to receive. If AA must deduct tax on this category of royalty, AA will bear the additional amount needed to discharge that tax while preserving the stated net entitlement. Other Appendix P revenue continues under original §4.7. The underlying percentage in §4.1 is unchanged.

Execution trail: AA board approval CO-LEG-218 (2026-06-25); AG signed electronic envelope E-SIGN-91 (2026-06-27); implementation memo circulated 2026-07-02.